

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
CARVER MARSHALL,

Plaintiff,

-against-

JORGE CASTRO, SHIELD 9689, individually and in
his official capacity, UNIDENTIFIED OFFICERS OF
THE NEW YORK CITY POLICE DEPARTMENT,
individually and in their official capacity, NEW YORK
CITY POLICE DEPARTMENT,Defendants.
-----X**VERIFIED COMPLAINT****Index No.: 512992/2015**Plaintiff designates Kings
County as the Place of VenueVenue is based upon
Plaintiff's residence and
location of the incident

The Plaintiff, complaining of the defendants, by his attorney, AMY MARION, ESQ., respectfully shows to this Court and alleges that she suffered abuse and sustained injury at the hands of the above defendants.

JURISDICTION

1. Plaintiff, Carver Marshall is a resident of Kings County in the State of New York.

PARTIES

2. Upon information and belief, that at all times relevant and all times mentioned herein, Police Officer Jorge Castro and other unidentified police officers were employed by the New York City Police Department ("NYPD") as police officers in Kings County, New York.

3. The NYPD, is a local governmental agency, duly formed and operating under and by virtue of the laws and Constitution of the State of New York and the Commissioner of the NYPD is responsible for the policies, practices and customs of the NYPD as well as the hiring, screening, training, supervising, controlling and disciplining of its police officers and civilian employees.

STATEMENT OF FACTS

4. On January 25, 2014, Plaintiff Carver Marshall was the lawful operator of a 2013 BMW Sedan bearing New York State License Plate number ZEF2661.

5. On January 25, 2014, defendant JORGE CASTRO arrested Plaintiff Carver Marshall for disorderly conduct, aggravated unlicensed operation of a motor vehicle in the first, second and third degrees, and unlicensed operation of a motor vehicle.

6. Defendant JORGE CASTRO stated that the vehicle Plaintiff Carver Marshall had been operating a vehicle that was obstructing vehicular traffic at 616 Livonia Avenue, Brooklyn, New York, in that at least three (3) other vehicles had to cross into oncoming traffic to avoid.

7. Mr. Carver was arrested and held in custody for 24 hours and was required to come back to court for six (6) months until his case was dismissed and sealed.

8. Mr. Carver was required to remain in jail until he was able to pay the bail of \$5,000.00, he was required to pay lawyers' fees, he was also supposed to move and that was delayed as a result of the necessity of dealing with criminal case.

9. The case was dismissed and sealed on July 25, 2014.

10. Carver Marshall was not operating a vehicle on that date and at that time.

DAMAGES

11. Plaintiff Marshall incurred mental anguish, emotional distress, physical pain and injury.

12. As a result of this arrest Mr. Carver suffered monies lost from the delay in moving, humiliation, indignities, embarrassment, and degradation, and was required to pay for his legal expenses to defend himself and he was otherwise injured.

FIRST CAUSE OF ACTION

NEW YORK STATE TORT LAW – DEFENDANT NEW YORK CITY POLICE DEPARTMENT - NEGLIGENCE, TRAINING, SUPERVISION AND RETENTION

13. Plaintiff repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as if more fully and at length set forth herein.

14. That the defendants were negligent, careless, reckless and deliberately indifferent in hiring, retaining, properly training and supervising, as and for its employees, named defendants herein, in that the defendants knew or should have known that the JORGE CASTRO lacked the skill, ability and training to make determinations as to probable cause which result in the deprivation of an individual's liberty.

15. The defendants failed to exercise due care and caution in their hiring practices, and in particular, in hiring the defendant who lacked the maturity, mental capacity and the ability to function as an employee of the aforementioned defendants; failing to investigate the above-named defendant's background and in that the named defendant was wholly unqualified in that the named defendant lacked the maturity, sensibility and intelligence to be employed when hired.

16. That the defendants failed to train its employee in the proper criteria for establishing probable cause to arrest; the proper criteria for establishing reasonable suspicion to believe that a certain individual committed a criminal act, the proper criteria for making an identification; and in that the defendants, their agents, servants and employees were otherwise reckless, careless, deliberately indifferent and negligent.

17. The aforesaid occurrence and resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence recklessness and carelessness of the

defendants, their agents, servants and employees without any negligence on the part of the Plaintiff.

18. The aforesaid injuries did not result from any negligence or fault on the part of the Plaintiff herein.

19. The limitations on liability set forth in CPLR § 1601 do not apply by reason of one or more of the exemptions set forth in CPLR § 1602.

20. By reason of the foregoing, Plaintiff Carver Marshall has been damaged as set forth above.

SECOND CAUSE OF ACTION

STATE TORT FALSE IMPRISONMENT/FALSE ARREST

21. Mr. Carver hereby incorporates by reference all of the foregoing paragraphs and further alleges as follows.

22. That the Plaintiff's right to be free from unreasonable search and seizure has been violated pursuant to Article I Section 12 of the New York New York State Constitution in that the defendant Castro arrested the Plaintiff.

23. There was no information sufficient to support a reasonable belief that an offense had been committed.

24. That the said false arrest was instigated by the defendant Castro knowing that there was no probable cause to believe that the Plaintiff committed a crime.

25. That the Plaintiff was conscious of the confinement, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

26. That the said seizure and unlawful detention was instigated and caused by the defendants and without any legal basis or probable cause to believe that Mr. Carver was in fact guilty of crimes.

27. That by reason of the unlawful seizure and false arrest, Plaintiff Carver Marshall has been damaged as set forth above.

THIRD CAUSE OF ACTION

MALICIOUS PROSECUTION

28. Mr. Carver hereby incorporates by reference all of the foregoing paragraphs and further alleges as follows.

29. That the Plaintiff's rights have been violated pursuant to Article I Section 12 of the New York New York State Constitution to be free from unreasonable search and seizure.

30. That the said acts were caused by the defendants and other unidentified police officers without any legal justification.

31. That the said malicious prosecution was instigated by the defendants, their agents, servants and employees, without any legal justification to wit, without probable cause and based upon the Defendant Castro's knowingly false statement.

32. Defendant's false statements caused the initiation of criminal proceedings against the Plaintiff.

33. That Plaintiff was arraigned on criminal charges and a criminal prosecution continued against him.

34. That the said initiation and continuation of criminal proceedings was instigated and caused by the defendants and by Defendant Castro fabricating evidence and providing false

information, without authority of the law and without any legal basis or probable cause to believe that Mr. Carver was in fact guilty of crimes.

35. There was no information sufficient to support a reasonable belief that an offense had been committed.

36. The defendants' acts were shocking and were performed by the defendants with deliberate and reckless disregard for the truth and with malice.

37. In fact, the charges against Mr. Carver were dismissed. The prosecution was terminated in Mr. Carver's favor.

38. As a direct and proximate result of defendants' actions, Mr. Carver was imprisoned and was only released upon the requirement that he return to court for each and every court appearance.

39. Plaintiff was prosecuted for six months, was not free to travel freely, was required to return to court for each and every court appearance or a warrant would be issue for his arrest.

40. That by reason of the malicious prosecution, Plaintiff Carver Marshall has been damaged as set forth above.

WHEREFORE, Plaintiff prays for relief as follows:

A. That the Court award compensatory damages to him and against the defendants jointly and severally, in an amount to be determined at trial;

B. That the Court award punitive damages to him, and against all defendants, in an amount, to be determined at trial, that will deter such conduct by defendants in the future;

C. For a trial by jury;

- D. For a pre-judgment and post-judgment interest and recovery of his costs; and
- E. For any and all other relief to which he may be entitled.

Dated: December 18, 2015
Garden City, New York

BARKET MARION EPSTEIN & KEARON, LLP



Amy Marion, Esq.
Attorneys for Carver Marshall
666 Old County Road-Suite 700
Garden City, N.Y. 11530
(516) 745-1500

VERIFICATION

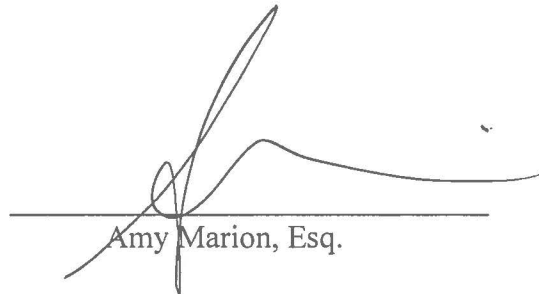
AMY MARION, attorney for the Plaintiff in the within action, duly admitted to practice in the Courts of the State of New York, affirms the following statements to be true under the penalties of perjury, pursuant to Rule 2016 of the CPLR;

That she has read the foregoing Complaint and knows the contents thereof; that the same is true to her own knowledge except as to those matters therein stated to be alleged upon information and belief, and that as to those matters, she believes the to be true.

Affiant further states that the source of this information and the grounds of her belief are derived from the file maintained in the normal course of business of the attorneys for the Plaintiff.

Affiant further states that the reason this affirmation is not made by the Plaintiff is that at the time this document was being prepared, the Plaintiff resides outside of the county where the attorney for the Plaintiff herein maintains her office.

Dated: December 18, 2015
Garden City, New York



Amy Marion, Esq.

RECEIVED

KINGS COUNTY CLERK
EQUITY DEPARTMENT, WINDOW #9
360 ADAMS STREET
BROOKLYN, NY 11201
Online inquiries: www.nycourts.gov/kingsclerk

JAN 07 2016

Barket Marion
Epstein & Kearon, LLP

INDEX # _____ VS _____

WE ARE RETURNING THE ATTACHED PAPERS
FOR THE FOLLOWING REASON(S):

- ☐ Appeal must utilize a specific format (see attached).
- ☐ Caption does not match the caption in the county clerk's minutes.
- ☐ Case was transferred to Civil Court (see attached).
- ☐ Certificates of Disposition require a \$10.00 fee.
- ☐ Copy of a(n): ☐ Judgment / Order or ☐ Certified Appellate Division decision & order, ☐ Affidavit of service, and a Notice of entry.
- ☐ Court / county is improper.
- ☐ Index number is incorrect / missing.
- ☐ Order has not yet been entered.
- ☐ Papers must contain attorney's information (i.e. name, address and phone number).
- ☐ Stipulations of discontinuance or settlement require a \$35.00 filing fee.
- ☐ Papers for third party actions are filed under the main index number and caption.
- ☐ Venue has been changed (see attached).
- ☒ Other: ALL FILINGS FOR EFILE CASES (500 XXX/YR)
MUST BE MADE THROUGH EFILE SYSTEM AT:
www.nycourts.gov/efile

Date: _____

By: _____
Equity Department, Window #9

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